



Employment Decisions Based on Criminal Record?

By Adriel Willis



Question I Am Responding To?

What criteria would you choose in developing an employment policy for assessing an applicant's prior convictions?



Avoid blanket exclusions

- Do not exclude all applicants or employees with criminal records from all job opportunities
- Evaluate each individual's criminal history in relation to the specific job duties and responsibilities
- Considering the nature and severity of the offense, the time elapsed since the offense or completion of the sentence, and the relevance of the offense to the job requirements.
- Not using a criminal record as an automatic disqualification for all job positions.
- Providing an opportunity for individuals with criminal records to explain the circumstances of their record and demonstrate their qualifications for the job.



Consider the job requirements

- Evaluate whether a criminal record would actually impact an individual's ability to perform the job duties
- Consider the job requirements and responsibilities to determine whether a criminal record is relevant
- It is always best to hire based on need and not based on the candidate themselves
- From a human resource perspective this is a common issue that leads to another issue which I phrase as “the revolving door” where you’re constantly hiring because your not filling the position correctly



Give the chance for individuals who want to, to be able to explain

- Inform applicants or employees with criminal records that they may be excluded from employment based on their record
- This is extremely helpful and it allows individuals to explain their convictions and get rid of any preconceived notions for example. If you went to jail for failure to submit a tax return you would want let's just say a "Bank" to know that so that they don't think you went to jail for a crime such as larceny or theft if that makes sense
- Provide them with an opportunity to explain the circumstances of their record before any decision is made



Do Not Ban The Box!

- "Banning the box" refers to removing the checkbox on job applications that asks about criminal history.
- Employers may still discriminate against applicants with criminal records, even without the box, through other means of inquiry, such as asking about criminal history during the interview process.
- Employers may also make assumptions about applicants based on other factors, such as their name or address, leading to discrimination against individuals from certain demographics that are more likely to have criminal records.



Individualized/Specialized Assessments and Interviews

- Assess each applicant or employee with a criminal record individually
- Consider factors such as the nature and gravity of the offense, the time elapsed since the offense or completion of the sentence, and the nature of the job
- According to Pynes ""Recruitment is the process of locating qualified candidates. Recruitment strategies should be planned in advance of the agency's needs. Strategic job analysis and audits of positions and employee skills should be updated on a regular basis to determine whether incumbent employees are qualified for promotions or newly created positions. For some positions, depending on the qualifications and experience needed, agencies may prefer to seek applicants from the external labor market."



State Your Background Check Policy

- Setting expectations: Clearly stating the policy informs job applicants and current employees of what to expect during the hiring process or at any point during their employment
- According to ADP “Background Checks” help to reduce misunderstandings: The policy can reduce misunderstandings and confusion about the background check process, the types of checks that will be performed, and what criteria will be used to evaluate the results
- Increasing transparency: Clearly stating the policy increases transparency and helps build trust with job applicants and employees by demonstrating a commitment to fair and unbiased hiring practices
- This primarily is to protect your company and make sure it does not discriminate against individuals and protects from litigation



Citations

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